

109	Fierro vs. 5.11, Inc. 2020-01171395	Motion for Final Approval The Motion for Final Approval of Class Action and PAGA Settlement filed by Plaintiffs Yesenia Fierro and Cherise Morris Eastman is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On November 20, 2020, Plaintiff Yesenia Fierro, individually and on behalf of other members of the general public similarly situated and on behalf of the State of California pursuant to the California Private Attorneys General Act, filed a Class Action Complaint for Damages and Enforcement Under the Private Attorney’s General Act against Defendant 5.11, Inc. The Complaint alleges eleven (11) causes of action for various wage-and-hour violations of the Labor Code, violations of the Unfair Competition Law, and PAGA violations. On January 18, 2023, pursuant to stipulation and order, Fierro filed the operative First Amended Complaint (“FAC”). The FAC alleges the same 11 causes of action, but adds Cherise Morris Eastman as a named Plaintiff, and 5.11 Tactical, Inc. and 5.11 Tactical as named Defendants. Fierro submitted her PAGA notice to the Labor and Workforce Development Agency (“LWDA”) on September 16, 2020, and Eastman provided her notice on April 25, 2022. On September 14, 2023, Plaintiffs filed the Motion for Preliminary Approval of Class Action and PAGA Settlement. On November 11, 2024, at the fourth hearing on the matter, the Court granted the Motion, and the Order Granting Preliminary Approval was entered on November 27, 2024. On March 28, 2025, Plaintiffs filed the current Motion for Final Approval of Class Action and PAGA Settlement. The Motion seeks final approval of the First Amended Class and Representative Action Settlement Agreement and Release of Claims (“Agreement” or “Settlement Agreement”) entered into between Plaintiffs and Defendant 5.11, Inc. (5.11 Tactical, Inc. does not exist as a corporate entity, and 5.11 Tactical is a fictitious business name of 5.11, Inc. Therefore, 5.11 Tactical, Inc. and 5.11 Tactical are not parties to the Settlement Agreement.) The Agreement provides for the settlement of Plaintiffs’ claims for the non-reversionary Gross Settlement Amount of \$785,000.00. The putative Settlement Class includes 866 Class Members consisting of: “All current and former non-exempt employees of Defendant who performed work for Defendant in the State of California during the period from November 20, 2016, through June 10, 2023, who have
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not signed an arbitration agreement with class waiver.”

In addition, the Settlement includes PAGA Aggrieved Employees consisting of: “All current and former non-exempt employees of Defendant who performed work for Defendant in the State of California during the PAGA Period.” The PAGA Period is defined as the period from September 16, 2019, through March 27, 2023.

On January 13, 2025, the settlement administrator, ILYM Group, Inc., sent Notice Packets via U.S. Mail to all of the putative Class Members. As of March 28, 2025, no Class Members had objected to or requested to be excluded from the Settlement. In addition, on Class Members submitted disputes as to the number of weeks they had worked during the Class Period.

The Court concludes that the \$785,000.00 Class Action and PAGA Settlement is fair and reasonable, and that the notice to the Class was adequate. Accordingly, the Court certifies the above-defined Class for settlement purposes only, and approves the following specific awards and disbursements:

- Attorneys’ fees totaling \$235,500.00 to Class Counsel, Lawyers for Justice, PC;
- Litigation costs totaling \$20,393.54 to Class Counsel, Lawyers for Justice, PC;
- Settlement administration costs of \$11,000.00 to ILYM Group, Inc.;
- Class Representative Service Award of \$5,000.00 to Plaintiff Yesenia Fierro;
- Class Representative Service Award of \$5,000.00 to Plaintiff Cherise Morris Eastman;
- \$112,500.00 to the Labor Workforce and Development Agency (LWDA) for its share of the PAGA penalties.

Pursuant to the Settlement Agreement, Defendants are ordered to separately pay all employer payroll taxes owed on the wage portions of the Individual Class Payments.

The Net Settlement Amount payable to all Class Members and PAGA Aggrieved Employees is \$395,606.46, including the \$37,500.00 in PAGA penalties to be distributed to the PAGA Aggrieved Employees in accordance with the terms of the Settlement Agreement.

Within five (5) court days, Class Counsel must submit a revised Proposed Order with the following corrections:

- Remove attorney information from caption page;
- Update the date and time of the hearing in the caption;
- The ROA number of the Order Granting Preliminary Approval is "ROA 240";
- In Paragraph 6, the end date of the PAGA Period is March 27, 2023, not June 10, 2023;
- In Paragraph 11, revise the amount of the attorneys' fees award consistent with this ruling;
- In Paragraph 12, revise the amount of the award of litigation costs consistent with this ruling;
- In Paragraph 18, state that continuing jurisdiction of the Court is pursuant to CCP § 664.6 as well as CRC 3.769(h); and
- Add a paragraph stating the date, time, and location of the Final Accounting hearing, and the deadline for the submission of the settlement administrator's final report.

Within five (5) court days, Class Counsel must submit proof of service of the Motion for Final Approval and the Settlement Agreement on the LWDA.

Within five (5) court days, Class Counsel must submit the supplemental declaration of the settlement administrator with the following information:

- The total number of PAGA Aggrieved Employees; and
- A copy of the invoice for administration costs and fees.

Final Accounting is set for May 21, 2026, at 2:00 p.m. in Department CX102. Counsel shall submit the final administrator's report no later than fourteen (14) calendar days prior to the Final Accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to Class Members and PAGA Aggrieved Employees, and the amount of uncashed funds remitted to the *cy pres* recipient, Legal Aid at Work. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance.

Plaintiffs are ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days after entry of the Final Approval Order and Judgment.